



United States
Attorney's Office
Southern District of New York



Statement Of U.S. Attorney Jay Clayton On The Verdict In U.S. V. Omnicare And CVS Health Corporation

Tuesday, April 29, 2025

For Immediate Release

U.S. Attorney's Office, Southern District of
New York

False claims in the healthcare industry cost every American. Today, a unanimous jury found Omnicare, the country's largest long-term care pharmacy, liable for fraudulently dispensing drugs without valid prescriptions to elderly and disabled people in assisted living facilities and other residential long-term care facilities. After a four-week trial, the jury found that Omnicare billed Medicare, Medicaid, and TRICARE for over three million false claims resulting in \$135,592,814 in damages. Under the federal False Claims Act, the Government is entitled to three times the amount of these assessed damages, or \$406,778,442, plus statutory penalties to be determined by the Court. This is one of the largest damages verdicts rendered by a jury in a False Claims Act case. The jury also found CVS Health Corporation, Omnicare's parent, liable for causing Omnicare to submit false claims. I thank the women and men of our Civil Division for continuing to pursue those who seek to exploit the healthcare system. I also thank the U.S. Department of Health and Human Services and the Department of Defense for their support and assistance throughout this case.

Contact

Nicholas Biase, Shelby Wratchford
(212) 637-2600

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